



A COMMUNITY OF CHOICE

CITY ENGINEER'S OFFICE
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

MEMO

TO: Honorable Mayor Patrick J. Collins, City of Cheyenne
Members of the City Council, City of Cheyenne

FROM: Erin Gates, PE, Staff Engineer *ENG*

DATE: August 21, 2024

SUBJECT: Drainage easement granted by Kenrich, LLC to the City of Cheyenne along the Christensen Road corridor.

Please find attached documentation for a permanent drainage easement granted to the City of Cheyenne from Kenrich, LLC. This drainage easement is necessary due to the encroachment of drainage infrastructure associated with Christensen Road onto private property. An appraisal has been completed for the 446 square feet of affected area. The diminution value of the parcel is \$424.00. Compensation for this easement will come from the 2017 Specific Purpose Option Tax Fund, GL 030-20-2033-42-21301. Your approval of this drainage easement is respectfully requested.

DRAINAGE EASEMENT

KNOW ALL MEN BY THESE PRESENTS that the undersigned, Kenrich, LLC, a Wyoming Limited Liability Company, hereinafter referred to as "Grantor," in consideration of the sum of Ten Dollars and other good and valuable consideration as provided in that certain Drainage Easement Agreement of even date herewith, the receipt of which is hereby acknowledged, and the further consideration of performance of the covenants and agreements by the City of Cheyenne, Wyoming ("City"), a Municipal Corporation, its successors and assigns, hereinafter referred to as "Grantee," as hereinafter set out and expressed, hereby grants, bargains, sells and conveys to the Grantee, a permanent drainage easement ("Easement") to construct, reconstruct, operate, maintain, repair, remove and replace a drainageway and appurtenant features thereto, including ditches, swales, catchments, riprap, catch basins, storm drains, storm sewers, culverts, detention facilities, and retention facilities ("Facilities") on, over, through and across certain lands, situate in the NE1/4NE1/4, Section 25, T.14N., R.66W., 6th P.M., Laramie County, Wyoming, said easement being more particularly described as follows:

An easement for a drainageway and appurtenant facilities located in the Northeast Quarter of Section 25, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, more particularly described as follows:

Beginning at a point on the East line of the Northeast Quarter of Section 25, from which the Northeast Corner of said Section 25 bears N0°04'21"E, a distance of 727.22 feet; thence N89°55'39"W, a distance of 50.00 feet to the True Point of Beginning, being on the West Right of Way line of Christensen Road; thence S89°58'50"E, a distance of 17.86 feet; thence S0°01'10"E, a distance of 25.00 feet; thence N89°58'50"E, a distance of 17.82 feet to a point on the West Right of Way line of Christensen Road; N0°04'21"E, a distance of 25.00 feet to the point of beginning.

Said Easement contains 0.01 acres more or less. See Exhibit A attached hereto.

TO HAVE AND HOLD unto said Grantee so long as the "Facilities" shall be maintained, together with the right of ingress to and egress from said premises for the purpose of constructing, reconstructing, operating, maintaining, repairing, removing, and replacing said Facilities, or the removal thereof in whole or in part, at the will of the Grantee, it being the intention of the parties hereto that the Grantor is hereby granting the uses herein specified without divesting the Grantor of the right to enjoy the above-described premises, subject only to the rights of the Grantee to use the same for the purposes herein expressed.

As further consideration of this agreement, the Grantor herein agrees as follows:

1. The Grantor shall not construct or place any structure or building, on the Easement. Grantor may otherwise use the Permanent Easement area as long as such use does not interfere with Grantee's use.
2. That Grantee will replace or rebuild any and all unusual or excessive damage to the easement property which shall be occasioned by the operation and maintenance of said Facilities under and through the above-described premises.

3. Grantee, following the installation, maintenance or removal of the Facilities, shall restore the surface of the Easement and any constructed improvements to, as near as practicable, the condition of the surface and the constructed improvements prior to said installation or maintenance.

4. It is further understood and agreed that this agreement shall run with the land and shall inure to the benefit of, and be binding upon the legal representatives, heirs, devisees, successors and assigns of the respective parties, and by the execution and acknowledgment thereof, Grantors jointly and severally waive their homestead rights to the above-described lands so far as the same may be affected by this agreement.

IN WITNESS WHEREOF, the parties hereto have executed the Easement Agreement as of the date and year first above written.

GRANTOR: Kenrich LLC.

By: Ken E. Malm _____

Its: _____

STATE OF WYOMING)
) SS.
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me this _____ day of _____, 20____, by Ken E Malm, Owner on behalf of Kenrich LLC.

My commission expires: _____

Notary Public

GRANTEE: CITY OF CHEYENNE

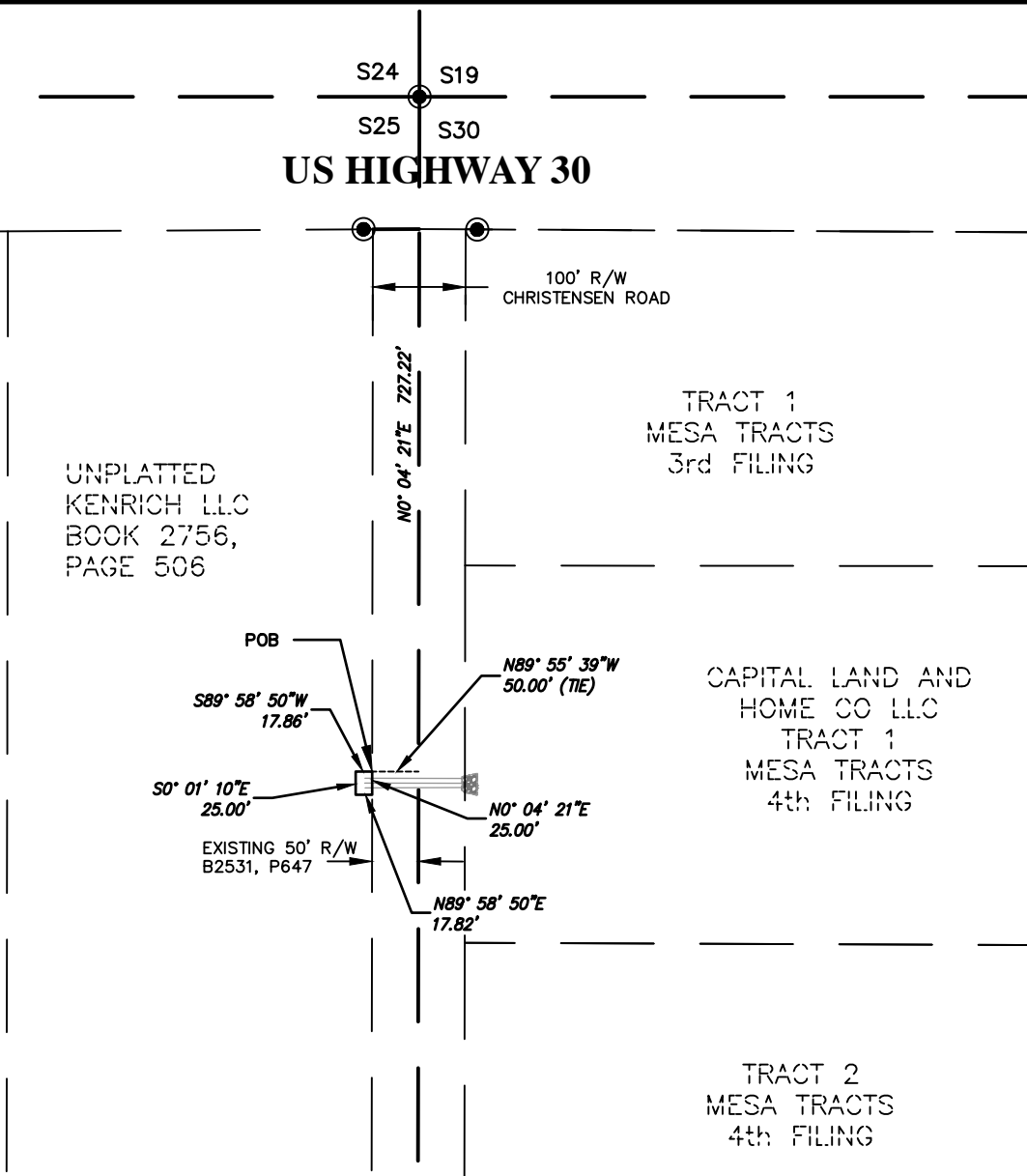
Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

US HIGHWAY 30



EASEMENT DESCRIPTION

An easement for storm sewer facilities, across the Northeast Quarter of Section 25, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, more particularly described as follows;

Beginning at a point on the East line of the Northeast Quarter of Section 25, from which the Northeast Corner of said Section 25 bears N0°04'21"E, a distance of 727.22 feet; thence N89°55'39"W, a distance of 50.00 feet to the True Point of Beginning, being on the West Right of Way line of Christensen Road; thence S89°58'50"W, a distance of 17.86 feet; thence S0°01'10"E, a distance of 25.00 feet; thence N89°58'50"E, a distance of 17.82 feet to a point on the West Right of Way line of Christensen Road; thence N0°04'21"E, a distance of 25.00 to the point of beginning. Containing 0.01 acres more or less.

LEGEND

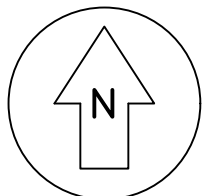
FOUND ALUMINUM CAP

BASIS OF BEARINGS:

WYOMING STATE PLANE
COORDINATES,
EAST ZONE, NAD83-2011,
US SURVEY FEET, DISTANCES
ARE GRID DISTANCES.

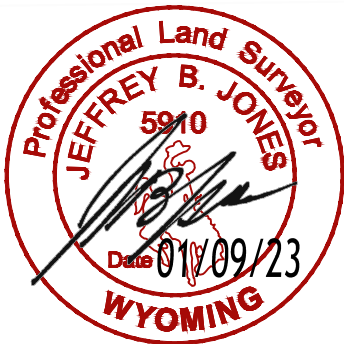
CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.



0 200'

Scale: 1"=200'



22251 CHRISTENSEN ROAD ESMT.DWG

STORM SEWER
EASEMENT EXHIBIT A
FOR

NE¼ SECTION 25,
T14N, R66W, 6TH P.M.
LARAMIE COUNTY, WYOMING.

Date prepared: December, 2022



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
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